

24STCV13674 24STCV13674

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Case Number: 24STCV13674 Hearing Date: July 21, 2026 Dept: 516

Hearing Date: July 21, 2026

Case Name: Wilson

v. McDonald's Corporation, et al.

Case No.: 24STCV13674

Matter: Motion to

Continue Trial

Moving Party: Defendants McDonald's

Corporation, DRS Hospitality, LLC, and Monica

Gonzalez

Responding Party: None

Tentative

Ruling: Defendants McDonald's Corporation,

DRS Hospitality, LLC, and Monica Gonzalez's motion to continue trial is denied.

Plaintiff Donald Wilson ("Plaintiff") filed this action against

Defendants McDonald's Corporation, DRS Hospitality, LLC, Monica Gonzalez (collectively

"Defendants"), Warner Safe Guard, Inc., and Does 1 through 25. The Complaint

alleges three causes of action for: (1) premises liability; (2) negligence; and

(3) negligent hiring and supervision.

Defendants move for the Court to continue the trial date and related dates.

Plaintiff did not file an opposition.

Discussion

Defendants move for the Court to continue the trial and related trial dates pursuant to California Rules of Court 3.1332.

California Rules of Court expressly permit a trial date to be continued upon a showing of “good cause.” (Cal. Rules of Court, rule 3.1332(c).) Trial continuances are “disfavored,” and “[t]he court may grant a continuance only on an affirmative showing of good cause requiring the continuance.” (Ibid.)

Rule 3.1332(c) lists seven circumstances “that may indicate good cause,” and Rule 3.1332(d), lists additional factors the trial court may consider. The trial court must consider all relevant facts and circumstances surrounding the continuance, including: “[t]he proximity of the trial date”; “[t]he length of the continuance requested”; “[t]he availability of alternative means to address the problem that gave rise to the motion or application for a continuance”; “[t]he prejudice that parties or witnesses will suffer as a result of the continuance”; and “[w]hether the interests of justice are best served by a continuance, by the trial of the matter, or by imposing conditions on the continuance” (Cal. Rules of Court, rule 3.1332(d)(1)-(4), (10).)

In support of their motion, Defendants move for a trial continuance because they have not deposed Plaintiff. Defendants argue that a continuance is warranted because, after they depose Plaintiff, there is a possibility of engaging in mediation. Defendants contend that they have previously served five notices for Plaintiff’s deposition for July 15, 2025, August 12, 2025, November 11, 2025, February 9, 2026, and June 10, 2026. (Lascola Decl., ¶ 5.) Defendants assert that the scheduled deposition for July 15, 2025, was continued by Defendants, but that Plaintiff has not appeared for his deposition. (Ibid.) However, the Court does not find good cause to continue the trial based on Defendants’ lack of diligence in deposing Plaintiff. To date, Defendants have not filed a motion to compel the deposition of Plaintiff. Also, Defendants do not provide the Court with any reasoning as to why they did not pursue the remedies available pursuant to the Civil Discovery Act. Defendant argues that a secondary result of their inability to depose Plaintiff will be that any “potential expert witness discovery” will be incomplete because Plaintiff’s deposition will be taken three and a half months before trial if the deposition

is conducted on July 24, 2026. (Lascola Decl., ¶ 7.) However, as addressed above, Defendants did not seek the available relief and do not present further explanation as to why all discovery cannot be completed before trial.

Defendants also argue that a trial continuance is warranted so the parties can engage in meaningful settlement discussions. However, this argument does not warrant a trial continuance under California Rules of Court 3.1332(c)-(d). Plaintiff filed this action on May 31, 2024, and trial is still several months away.

Defendants have failed to demonstrate good cause and thus, Defendants' motion to continue trial is denied.

Conclusion

Defendants McDonald's Corporation, DRS Hospitality, LLC, and Monica Gonzalez's motion to continue the trial date and related dates is denied.